

Issue

Can PSO's conduct field interviews with accused persons where the offence is a summary offence?

The necessary components are:

- Power to require name and address; and
- Power of arresting the individual if required; and
- Power to act as an investigating official (of an offence)

Rule

Crimes Act 1958 - Definitions

"investigating official", in relation to an offence committed outside Victoria, includes a person (other than a person who is engaged in covert investigations under the orders of a superior) who is—

(a) a member of—

(i) the Australian Federal Police; or

(ii) the police force of another State or a Territory; or

(b) a person appointed by or under an Act of the Commonwealth or another State or a Territory whose functions or duties include functions or duties in respect of the prevention or investigation of offences;

"member of Victoria Police personnel" has the same meaning as in the Victoria Police Act 2013 ;

"protective services officer" has the same meaning as in the Victoria Police Act 2013 ;

"police officer" has the same meaning as in the Victoria Police Act 2013 ;

CRIMES ACT 1958 - SECT 456AA

Requirement to give name and address

(1) A police officer or a protective services officer on duty at a designated place may request a person to state his or her name and address if the police officer or the protective services officer believes on reasonable grounds that the person—

(a) has committed or is about to commit an offence, whether indictable or summary; or

(b) may be able to assist in the investigation of an indictable offence which has been committed or is suspected of having been committed.

(2) A police officer or a protective services officer who makes a request under subsection (1) must inform the person of the grounds for his or her belief in sufficient detail to allow the person to understand the nature of the offence or suspected offence.

(3) A person who, in response to a request made by a police officer or a protective services officer in accordance with this section—

(a) refuses or fails to comply with the request; or

(b) states a name that is false in a material particular; or

(c) states an address other than the full and correct address of his or her ordinary place of residence or business—

is guilty of a summary offence punishable on conviction by a level 11 fine (5 penalty units maximum).

(4) A person who is requested by a police officer or a protective services officer under subsection (1) to state his or her name and address may request the officer to state, orally or in writing, his or her name, rank and place of duty.

- (5) A police officer or a protective services officer who, in response to a request under subsection (4)—
- (a) refuses or fails to comply with the request; or
 - (b) states a name or rank that is false in a material particular; or
 - (c) states as his or her place of duty an address other than the name of the police station which is the police officer's or the protective services officer's ordinary place of duty; or
 - (d) refuses to comply with the request in writing if requested to do so—
- is guilty of a summary offence punishable on conviction by a level 11 fine (5 penalty units maximum).
- (6) A protective services officer may only exercise the power under this section in relation to a person who is at, or in the vicinity of, a designated place.
- (7) In this section— "designated place" has the same meaning as in the Victoria Police Act 2013 .

CRIMES ACT 1958 - SECT 464

Definitions

- (1) For the purposes of this Subdivision a person is in custody if he or she is—
- (a) under lawful arrest by warrant; or
 - (b) under lawful arrest under section 458 or 459 or a provision of any other Act; or
 - (c) in the company of an investigating official and is—
 - (i) being questioned; or
 - (ii) to be questioned; or
 - (iii) otherwise being investigated—
- to determine his or her involvement (if any) in the commission of an offence if there is sufficient information in the possession of the investigating official to justify the arrest of that person in respect of that offence.
- "investigating official" means a police officer or a person appointed by or under an Act (other than a police officer or person who is engaged in covert investigations under the orders of a superior) whose functions or duties include functions or duties in respect of the prevention or investigation of offences;

CRIMES ACT 1958 - SECT 458

Person found committing offences may be arrested without warrant by any person

- (1) Any person, whether a police officer or not, may at any time without warrant apprehend and take before a bail justice or the Magistrates' Court to be dealt with according to law or deliver to a police officer to be so taken, any person—
- (a) he finds committing any offence (whether an indictable offence or an offence punishable on summary conviction) where he believes on reasonable grounds that the apprehension of the person is necessary for any one or more of the following reasons, namely—
 - (i) to ensure the attendance of the offender before a court of competent jurisdiction;
 - (ii) to preserve public order;
 - (iii) to prevent the continuation or repetition of the offence or the commission of a further offence; or
 - (iv) for the safety or welfare of members of the public or of the offender;
 - (b) when instructed so to do by any police officer having power under this Act to apprehend that person; or
 - (c) he believes on reasonable grounds is escaping from legal custody or aiding or abetting another person to escape from legal custody or avoiding apprehension by some person having authority to apprehend that person in the circumstances of the case.
- (2) For the purposes of paragraph (a) in subsection (1) "offence" means offence at common law or a contravention of or failure to comply with a provision of an Act of Parliament and unless otherwise by Act of Parliament expressly provided does not include a contravention of or failure to comply with a rule regulation by-law or other law made under an Act of Parliament.

(3) A person who has been apprehended without warrant pursuant to the provisions of paragraph (a) in subsection (1) in respect of any offence punishable on summary conviction (not being an indictable offence that may be heard and determined summarily) and taken into custody shall be held in the custody of the person apprehending him only so long as any reason referred to in the said paragraph for his apprehension continues and where, before that person is charged with an offence, it appears to the person arresting that person that the reason no longer continues the person arresting that other person shall, without any further or other authority than this subsection, release that person from custody without bail or cause him to be so released and whether or not a summons has been issued against him or a notice to appear has been served on him with respect to the offence alleged.

(4) In subsection (3), "notice to appear" has the same meaning as in the Criminal Procedure Act 2009 .

CRIMES ACT 1958 - SECT 459

Powers of police officer or protective services officer to apprehend offenders

(1) In addition to exercising any of the powers conferred by section 458 or by or under any other Act a police officer, or a protective services officer on duty at a designated place, may at any time without warrant apprehend any person—

(a) he believes on reasonable grounds has committed an indictable offence in Victoria (including any indictable offence which may be heard and determined summarily); or

(b) he believes on reasonable grounds has committed an offence elsewhere which if committed in Victoria would be an indictable offence against the law of Victoria (including any indictable offence which may be heard and determined summarily).

Note

There is a presumption in favour of proceeding by summons if an accused is a child—see section 345 of the Children, Youth and Families Act 2005 .

(2) If a protective services officer arrests a person under subsection (1), the protective services officer must hand the person into the custody of a police officer as soon as practicable after the person is arrested.

(2A) A protective services officer may only exercise the power to apprehend without warrant under this section in relation to a person who is at, or in the vicinity of, a designated place.

(3) In this section, "designated place" has the same meaning as it has in the Victoria Police Act 2013 .

CRIMES ACT 1958 - SECT 464A

Detention of person in custody

(1) Every person taken into custody for an offence (whether committed in Victoria or elsewhere) must be—

(a) released unconditionally; or

(b) released on bail; or

(c) brought before a bail justice or the Magistrates' Court—
within a reasonable time of being taken into custody.

Note

Section 10 of the Bail Act 1977 applies at the expiration of the reasonable time referred to in subsection (1).

(2) If a person suspected of having committed an offence is in custody for that offence, an investigating official may, within the reasonable time referred to in subsection (1)—

(a) inform the person of the circumstances of that offence; and

(b) question the person or carry out investigations in which the person participates in order to determine the involvement (if any) of the person in that offence.

(3) Before any questioning (other than a request for the person's name and address) or investigation under subsection (2) commences, an investigating official must inform the person in custody that he or she does

not have to say or do anything but that anything the person does say or do may be given in evidence.

(4) In determining what constitutes a reasonable time for the purposes of subsection (1) the following matters may be considered—

- (a) the period of time reasonably required to bring the person before a bail justice or the Magistrates' Court;
- (b) the number and complexity of offences to be investigated;
- (c) any need of the investigating official to read and collate relevant material or to take any other steps that are reasonably necessary by way of preparation for the questioning or investigation;
- (d) any need to transport the person from the place of apprehension to a place where facilities are available to conduct an interview or investigation;
- (e) the number of other people who need to be questioned during the period of custody in respect of the offence for which the person is in custody;
- (f) any need to visit the place where the offence is believed to have been committed or any other place reasonably connected with the investigation of the offence;
- (g) any time taken to communicate with a legal practitioner, friend, relative, parent, guardian or independent person;
- (h) any time taken by a legal practitioner, interpreter, parent, guardian or independent person to arrive at the place where questioning or investigation is to take place;
- (i) any time during which the questioning or investigation of the person is suspended or delayed to allow the person to receive medical attention;
- (j) any time during which the questioning or investigation of the person is suspended or delayed to allow the person to rest;
- (k) the total period of time during which the person has been in the company of an investigating official before and after the commencement of custody;
- (l) any other matters reasonably connected with the investigation of the offence.

Evidence Act 2008 - Definitions

investigating official means—

- (a) a police officer (other than a police officer who is engaged in covert investigations under the orders of a superior); or
- (b) a person appointed by or under an Australian law (other than a person who is engaged in covert investigations under the orders of a superior) whose functions include functions in respect of the prevention or investigation of offences;

EVIDENCE ACT 2008 - SECT 139

Cautioning of persons

(1) For the purposes of section 138(1)(a), evidence of a statement made or an act done by a person during questioning is taken to have been obtained improperly if—

- (a) the person was under arrest for an offence at the time; and
- (b) the questioning was conducted by an investigating official who was at the time empowered, because of the office that he or she held, to arrest the person; and
- (c) before starting the questioning the investigating official did not caution the person that the person does not have to say or do anything but that anything the person does say or do may be used in evidence.

(2) For the purposes of section 138(1)(a), evidence of a statement made or an act done by a person during questioning is taken to have been obtained improperly if—

- (a) the questioning was conducted by an investigating official who did not have the power to arrest the person; and
- (b) the statement was made, or the act was done, after the investigating official formed a belief that there

was sufficient evidence to establish that the person has committed an offence; and

(c) the investigating official did not, before the statement was made or the act was done, caution the person that the person does not have to say or do anything but that anything the person does say or do may be used in evidence.

(3) The caution must be given in, or translated into, a language in which the person is able to communicate with reasonable fluency, but need not be given in writing unless the person cannot hear adequately.

(4) Subsections (1), (2) and (3) do not apply so far as any Australian law requires the person to answer questions put by, or do things required by, the investigating official.

(5) A reference in subsection (1) to a person who is under arrest includes a reference to a person who is in the company of an investigating official for the purpose of being questioned, if—

(a) the official believes that there is sufficient evidence to establish that the person has committed an offence that is to be the subject of the questioning; or

(b) the official would not allow the person to leave if the person wished to do so; or

(c) the official has given the person reasonable grounds for believing that the person would not be allowed to leave if he or she wished to do so.

(6) A person is not treated as being under arrest only because of subsection (5) if—

(a) the official is performing functions in relation to persons or goods entering or leaving Australia and the official does not believe the person has committed an offence against a law of the Commonwealth; or

(b) the official is exercising a power under an Australian law to detain and search the person or to require the person to provide information or to answer questions.

Victoria Police Act 2013 - Definitions

member of Victoria Police personnel means—

(a) a person referred to in section 7; or

(b) a special constable, but only in respect of the performance of duties and functions and exercise of powers by the special constable for Victoria Police;

VICTORIA POLICE ACT 2013 - SECT 7

Who constitutes Victoria Police?

Victoria Police consists of the following persons—

(a) the Chief Commissioner;

(b) Deputy Commissioners;

(c) Assistant Commissioners;

(d) other police officers;

(e) protective services officers;

(f) police recruits;

(g) police reservists;

(h) Victoria Police employees.

Application

In applying this question, let's assume that a PSO has located a person committing a summary offence and wants to conduct a field interview on body-worn camera.

Field Interview: A field interview is conducted by an 'investigating official' in relation to a summary offence. There is no legislative provision which defines this. By looking at s. 458/459, the procedural requirements of this are clear.

s. 458 Crimes Act: It's a summary offence, we have this power. Any person can use this power, including a PSO. But CAPS would apply. Once we have that person's name, we lose that power (assuming we have stopped the offence). They are free to go.

s. 459 Crimes Act: For a summary offence, s. 459 does not apply.

s. 456AA Crimes Act: The power to require name and address is specifically given to PSO's.

s. 464 Crimes Act: Even if your power ends under s. 458/459, if you begin to question a person about their involvement in an offence, they are considered to be in custody. This section also outlines what an investigating official is and it would include PSO's.

s. 464A(1): Provision re: releasing a person taken into custody within a reasonable time. PSO's would need to comply with this.

s. 464A(2): An investigating official (PSO's) may within a reasonable time, let the offender know of the offence and question the person.

s. 464A(3): An investigating official must provide a caution/rights before questioning.

Evidence Act 2008 Definitions: (b) of the definitions would include PSO's.

s. 139 Evidence Act: A reading of this would enable PSO's to caution; and therefore question as an investigating official.

Investigating Official: The definitions within the Crimes Act describe an investigating official including a member of a police force. The Crimes Act also provides that a *member of police force* has the same definition within the Victoria Police Act. That definition points to s. 7 of the Victoria Police Act and at s. 7(e), PSO's are included in this.

Conclusion

Yes, PSO's can conduct field interviews for *any* summary offence. No part of any Act limits PSO's powers as an 'investigating official'. I have not reviewed the VPM's, which may limit this.